CANADA

House of Commons

45th Parliament, 1st Session

BILL C-___

An Act to amend the
Parliament of Canada Act
and the
Canada Elections Act
to preserve the democratic mandate of electors by requiring members of Parliament who change party affiliation to obtain a renewed mandate

ELECTORAL MANDATE INTEGRITY ACT

FIRST READING

Ottawa, [DATE]

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PREAMBLE

WHEREAS the Constitution of Canada guarantees to every citizen of Canada the right to vote in an election of members of the House of Commons and the right to be qualified for membership therein;

WHEREAS the political party system is a fundamental and acknowledged feature of Canadian parliamentary democracy, and the policy platforms, leadership, and affiliation of registered political parties are primary factors in the electoral choices made by Canadians;

WHEREAS empirical evidence from Canadian elections consistently demonstrates that party affiliation and party leadership are the dominant determinants of voter choice, such that a vote for a candidate is substantially a vote for the party that candidate represents and, through that party, for the potential formation of government by that party's leader;

WHEREAS the Parliament of Canada has recognized the central role of registered political parties in the democratic process and the public funding and regulatory framework that supports them;

WHEREAS a member of the House of Commons who changes their party affiliation after election without obtaining a renewed mandate from electors may thereby deprive those electors of the representation for which they voted, and may alter the balance of party representation in the House in a manner that does not reflect the expressed preferences of the electorate;

WHEREAS the democratic legitimacy of the House of Commons is strengthened when members who change party affiliation seek a renewed mandate from the electors of their constituency;

WHEREAS it is desirable to provide for limited and defined exceptions to protect the rights of members who act in good conscience in circumstances beyond their control, including party dissolution, demonstrated ethical violation, or merger of parties;

AND WHEREAS Parliament has the authority to enact legislation to protect and give effect to the democratic rights of electors;

NOW THEREFORE, His Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:

PART 1

Short Title

Short title

(1) This Act may be cited as the Electoral Mandate Integrity Act.

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PART 2

Interpretation

Definitions

(2) The following definitions apply in this Act:

"caucus" means the recognized parliamentary caucus of a registered party, as established under the Standing Orders of the House of Commons.

"change of party affiliation" has the meaning assigned by section 3.

"Chief Electoral Officer" has the same meaning as in the Canada Elections Act.

"election period" has the same meaning as in the Canada Elections Act.

"elected party" means the registered party under whose banner a member was most recently elected to the House of Commons at a general election or by-election.

"exempt change" has the meaning assigned by section 4.

"member" means a member of the House of Commons.

"registered party" has the same meaning as in the Canada Elections Act.

"Speaker" means the Speaker of the House of Commons.

Meaning of change of party affiliation

(3) For the purposes of this Act, a member effects a change of party affiliation if the member:

- **(a)** joins the caucus of a registered party other than the member's elected party;
- **(b)** publicly declares support for a registered party other than the member's elected party, including by announcing an intention to seek the nomination of such a party at the next election;
- **(c)** votes in the House of Commons consistently with the direction of a registered party other than the member's elected party in a pattern that, in the opinion of the Speaker, demonstrates a change of effective allegiance; the Speaker may, after consultation with the Standing Committee on Procedure and House Affairs, issue guidelines setting out factors or quantitative thresholds the Speaker will normally consider when forming that opinion; or

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(d) accepts appointment to the cabinet or ministry of a government formed by a registered party other than the member's elected party without having first obtained a renewed mandate under this Act.

((2)) For greater certainty, a member does not effect a change of party affiliation solely by:

(a) voting against the direction of the member's caucus on a free vote as designated by the registered party;

(b) abstaining from voting on a matter before the House;

(c) publicly expressing disagreement with a policy position of the member's registered party, provided the member does not take an action described in subsection (1); or

(d) resigning from the caucus of the member's registered party and declaring the intention to sit as an independent member, subject to section 5.

((3)) For greater certainty, a member who was most recently elected without affiliation to any registered party effects a change of party affiliation if the member joins the caucus of a registered party or otherwise engages in conduct described in subsection (1).

((4)) Notwithstanding subsection (2)(d), a member who resigns from their caucus to sit as an independent and, within ninety sitting days, joins the caucus of another registered party or publicly declares support for such a party shall be deemed to have effected a change of party affiliation on the date the later conduct occurs.

Exempt changes

(4) A change of party affiliation is an exempt change for the purposes of this Act if:

(a) the member's elected party has been deregistered under the Canada Elections Act or has voluntarily dissolved;

(b) the change results from a merger of registered parties carried out in accordance with the Canada Elections Act, and the member joins the caucus of the merged entity;

(c) the registered party to which the member has transferred is the same legal entity as the member's elected party, notwithstanding a change of name;

(d) the member has been involuntarily removed from the caucus of their elected party — and does not join another party's caucus — provided that within thirty days the member notifies the Speaker in writing of the circumstances of their removal and declares an intention to sit as an independent;

(e) the change occurs during a general election period; or

(f) the member satisfies the Speaker, on the basis of a report of the Conflict of Interest and Ethics Commissioner or other clear and compelling evidence presented by the member, that the change of affiliation is a good-faith response to a serious ethical violation by the member's elected party or its leadership that occurred after the member's election and that makes continued affiliation untenable in the member's conscientious judgment.

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((2)) The burden of establishing that a change of party affiliation is an exempt change lies with the member asserting the exemption.

((3)) The Speaker shall make a final determination as to whether a change is exempt, having regard to the circumstances described in this section. The determination of the Speaker is not subject to review by any court.

PART 3

Amendments to the Parliament of Canada Act

R.S.C. 1985, c. P-1

New section 25.1 — Vacation of seat on change of party affiliation

(5) The Parliament of Canada Act is amended by adding the following after section 25:

25.1 (1) Subject to subsection (2) and section 25.2, a member's seat becomes vacant upon the member effecting a change of party affiliation within the meaning of section 3 of the Electoral Mandate Integrity Act.

(2) Subsection (1) does not apply if the change of party affiliation is an exempt change within the meaning of section 4 of the Electoral Mandate Integrity Act.

(3) Before determining that a seat has become vacant under this section, the Speaker shall:

(a) give the member written notice of the Speaker's preliminary view that a change of party affiliation may have occurred, setting out the factual basis for that view;

(b) provide the member with a period of fifteen sitting days in which to make written submissions, including submissions as to whether the change is an exempt change under section 4 of the Electoral Mandate Integrity Act; and

(c) consider those submissions before making a final determination.

(4) Upon making a final determination that a seat has become vacant under this section, the Speaker shall:

(a) notify the member in writing;

(b) address the House at the earliest opportunity and announce the vacancy;

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(c) within two sitting days, notify the Chief Electoral Officer in writing of the vacancy, which notification shall trigger the by-election requirements of section 168.1 of the Canada Elections Act; and

(d) cause a written statement of reasons for the determination — including the factual findings, whether the change was or was not exempt, and the Speaker's assessment of any submissions received — to be tabled in the House and published on the Parliament of Canada website within two sitting days.

(5) A member whose seat has been declared vacant under this section may, pending the outcome of the by-election referred to in subsection (4)(c):

(a) continue to attend and speak in the House as a visiting former member, if the House so permits by Standing Order;

(b) not vote in the House, sit in any recognized party's caucus area, or receive any resources attributed to a party caucus; and

(c) continue to be provided with funding for, and have full access to, their constituency office, staff, and related parliamentary resources in accordance with the rules that would apply had the seat not been declared vacant, until the day the writ for the by-election is returned or a new member is elected, whichever is earlier.

(6) The determination of the Speaker under this section, including any determination that a change is or is not an exempt change, is a matter within the exclusive jurisdiction of the House of Commons for the purposes of parliamentary privilege, and is not subject to review by any court.

New section 25.2 — Transition: notice and cure period

(6) The Parliament of Canada Act is amended by adding the following after section 25.1:

25.2 (1) Before a change of party affiliation is taken to have occurred for the purposes of section 25.1, the following notice and cure procedure applies:

(a) the Speaker shall give written notice to a member when, in the Speaker's view, the member appears to be in the process of effecting a change of party affiliation;

(b) the member shall have five sitting days from the date of that notice to withdraw from or reverse any conduct that would constitute a change of party affiliation; and

(c) if the member withdraws the conduct within the cure period and the Speaker is satisfied that no change has been effected, no vacancy shall be declared.

(2) The cure period does not apply where the member has:

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(a) been sworn in as a minister of the Crown in a cabinet formed by a registered party other than the member's elected party; or

(b) publicly announced a change of party affiliation and has not retracted that announcement.

PART 4

Amendments to the Canada Elections Act

S.C. 2000, c. 9

New section 168.1 — By-election on change of party affiliation

(7) The Canada Elections Act is amended by adding the following after section 168:

168.1 (1) When the Chief Electoral Officer receives notice under section 25.1(4)(c) of the Parliament of Canada Act that a member's seat has become vacant by reason of a change of party affiliation, the following rules apply:

(a) the Chief Electoral Officer shall, within five days of receiving such notice, so advise the Governor in Council;

(b) the Governor in Council shall issue a writ for a by-election in the affected electoral district within thirty days of being so advised; and

(c) the by-election shall be conducted in accordance with this Act as if the seat had become vacant by reason of the member's death or resignation.

(2) A member whose seat has become vacant under subsection (1) is entitled to stand as a candidate in the by-election, and may stand under any party affiliation or as an independent.

(3) The thirty-day deadline in subsection (1)(b) may be extended by the Governor in Council for a further thirty days if the Chief Electoral Officer advises that operational requirements make compliance with the original deadline impracticable.

(4) Nothing in this section prevents the Governor in Council from issuing a writ for the affected by-election simultaneously with a general election writ, if a general election has been called before the by-election writ has been issued.

(5) The costs of a by-election held under this section shall be borne by the Consolidated Revenue Fund.

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PART 5

Consequential, Transitional, and Related Provisions

Existing Members

Application to existing members

(8) This Act applies only to changes of party affiliation that occur on or after the date this Act comes into force, and does not apply to any change of affiliation, or conduct leading to a change of affiliation, that occurred before that date.

Relationship to Parliamentary Privilege

Privilege preserved

(9) Nothing in this Act shall be construed to limit or abridge any privilege, immunity, or power of the House of Commons or any member thereof that exists independently of this Act.

((2)) For greater certainty, the House of Commons may, by Standing Order or resolution, establish procedures supplementary to or consistent with this Act for the purpose of giving effect to its provisions.

((3)) In the event of conflict between a provision of this Act and a Standing Order of the House of Commons, the Standing Order prevails to the extent of the conflict, provided the House has expressly addressed the subject matter of the conflict.

Charter Statement

Charter compatibility

(10) This Act is intended to be interpreted and applied in a manner consistent with the Canadian Charter of Rights and Freedoms.

((2)) The requirement for a by-election imposed by this Act is enacted for the pressing and substantial objective of protecting the democratic rights of electors under section 3 of the Charter by preserving the correspondence between the expressed party preferences of electors and the party composition of the House of Commons, and constitutes a

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proportionate and minimally impairing limit on the rights of members within the meaning of section 1 of the Charter.

((3)) If any provision of this Act is found to be inconsistent with the Charter, that provision shall be severed and the remainder of the Act shall continue in force.

Review

Parliamentary review

(11) Five years after this Act comes into force, a committee of the House of Commons shall undertake a review of the operation and effect of this Act and shall, within one year after undertaking the review, submit a report to the House with any recommended amendments.

Coming into Force

Coming into force

(12) This Act comes into force on a day to be fixed by order of the Governor in Council, but not later than one year after it receives Royal Assent.

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Explanatory Notes

These explanatory notes are provided for the purposes of discussion and are not part of the Act.

Overview and Policy Rationale

This Act introduces a requirement that a member of the House of Commons who changes party affiliation must vacate their seat and contest a by-election before sitting under their new affiliation. The legislation draws on New Zealand's Electoral (Integrity) Amendment Act 2018 (commonly referred to as the "waka-jumping" legislation) while adapting it to the specific constitutional and parliamentary context of Canada.

The central rationale for this legislation is that Canadian voters exercise their franchise primarily on the basis of party affiliation and, through it, on the basis of potential party leadership and government formation. Political science evidence consistently demonstrates

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that party identification and leader evaluation are the dominant determinants of vote choice at the federal level, with the candidate's personal attributes accounting for a smaller and generally subsidiary portion of the vote. A floor crossing therefore deprives electors of the party-based representation they voted for, and may alter the partisan composition of the House in ways that were not sanctioned by any election.

Notes on the Definitions (Part 2)

The definition of "change of party affiliation" in section 3 is drafted to capture the substance of a floor crossing rather than only its formal steps. The inclusion of paragraph (d) — acceptance of cabinet appointment from another party — addresses the specific circumstances of David Emerson in 2006, where a member accepted a ministerial post from a government of the opposing party within weeks of election without any intervening public declaration.

The definition deliberately excludes sitting as an independent in paragraph (d) of subsection (2), so long as the member does not join another party's caucus. A member who leaves their caucus to sit as an independent — for reasons of conscience, disagreement with party leadership, or otherwise — is not required to contest a by-election under this Act. The Act is directed at the situation in which a member's mandate is effectively transferred to a different partisan entity.

Subsection 3(3) clarifies the treatment of members elected as independents, ensuring symmetry with the central principle of the Act: that voters' explicit mandate — whether for a party or for an independent — is entitled to protection. An independent who joins a party caucus is effecting a mandate change just as much as a party MP who crosses the floor.

The anti-avoidance rule in subsection 3(4) closes the most obvious circumvention path, under which a member might resign to independent status, wait briefly, and then join another party's caucus outside the Act's reach. The ninety sitting-day window is long enough to distinguish a genuine and sustained exercise of independent judgment from a tactical pause. The Speaker's existing cure-period mechanism in section 25.2 continues to apply to the later conduct that triggers this provision.

The amendment to paragraph 3(1)(c) — the voting-pattern trigger — strengthens the Act's most legally vulnerable provision by giving the Speaker explicit authority, after consultation with the Standing Committee on Procedure and House Affairs, to publish guidelines or quantitative thresholds that will govern the exercise of that judgment. This transparency reduces the risk of a successful overbreadth challenge by providing advance notice of how the trigger will be applied.

The exempt changes in section 4 are intended to address situations in which a floor crossing is not a voluntary exercise of partisan choice but a consequence of circumstances beyond the member's control, principally party dissolution or merger. Paragraph (d) of

section 4 also protects a member who is expelled from their caucus against their will, provided they do not join another party.

The new exemption in section 4(1)(f) implements the preamble's reference to good-faith responses to demonstrated ethical violations. The requirement for a report of the Conflict of Interest and Ethics Commissioner, or equivalent clear and compelling evidence, provides an objective anchor that prevents the exemption from becoming a litigation-friendly escape hatch. Drafters should note, however, that the Ethics Commissioner's mandate under the Conflict of Interest Act covers the personal conduct of public office holders and does not automatically extend to internal party conduct. Where the ethical violation is one of party governance rather than personal conduct, the member bears a higher evidentiary burden under the "clear and compelling evidence" limb. The Speaker retains full discretion as to the weight of the evidence presented.

Notes on the Vacancy Mechanism (Part 3)

The mechanism in section 25.1 of the Parliament of Canada Act operates by deeming the seat vacant, which then triggers the by-election machinery of the Canada Elections Act. The notice-and-submissions procedure in subsection (3) is designed to satisfy the requirements of procedural fairness and to afford the Speaker sufficient factual basis to make a sound determination.

The assignment of determinative authority to the Speaker, with the explicit statement that determinations are not subject to judicial review (subsection (6)), is consistent with the constitutional principle of parliamentary privilege and with the approach taken in analogous Canadian and Commonwealth legislation. Courts have consistently declined to review the internal proceedings of legislatures on matters of this nature.

Subsection 25.1(4)(d) requires the Speaker to table and publish a written statement of reasons for any vacancy determination. This transparency requirement serves two purposes: it promotes public confidence in the process by making the Speaker's reasoning publicly accountable, and it creates a reasoned record that reinforces the privilege shield by demonstrating that the determination followed a principled process. The requirement to publish reasons does not, of itself, open the determination to judicial review — the privilege protection in subsection (6) remains intact.

The new paragraph 25.1(5)(c) ensures that constituency services are not disrupted during the period between the vacancy declaration and the return of the by-election writ. This provision reflects the Act's underlying orientation: it is designed to protect the rights of electors, not to punish the member or to deprive the member's constituents of representation. Preserving constituency office funding and access also strengthens the Act's proportionality argument under section 1 of the Charter by removing a form of collateral consequence that is not necessary to the Act's objective.

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The transition provision in section 25.2 — the "cure period" — is designed to avoid penalizing a member for exploratory conversations or public disagreements that fall short of an effective change of affiliation. The five sitting-day cure period is not available where the member has already been sworn in as a minister or has made a public announcement of a change, as in those cases the change is complete and no reversal is practically available.

Constitutional Analysis

This Act is intended to be enacted under the authority of section 44 of the Constitution Act, 1982, which grants Parliament unilateral authority to amend provisions of the Constitution of Canada in relation to the executive government of Canada or the Senate and House of Commons, except where those provisions fall within sections 41 or 42 of the Constitution Act, 1982. The provisions of this Act are considered to fall within Parliament's section 44 authority.

Section 10 of the Act is intended to provide a record of Parliament's analysis of the Charter implications of the legislation, consistent with the requirements established in cases such as R. v. Oakes [1986] 1 SCR 103. The by-election requirement is submitted to constitute a justifiable limit on any infringement of a member's section 3 rights, given the pressing objective of preserving the democratic rights of electors, the rational connection between the by-election requirement and that objective, and the fact that the requirement does not permanently disenfranchise the member but merely requires them to seek a renewed mandate.

Comparison with New Zealand's Waka-Jumping Legislation

New Zealand's Electoral (Integrity) Amendment Act 2018 provides that a member of Parliament who resigns from or is expelled by their parliamentary party is deemed to have vacated their seat. The key differences in this Canadian draft are:

First, New Zealand's system uses mixed-member proportional representation, in which voters explicitly cast both a candidate vote and a party vote. In Canada, the party vote is implicit rather than explicit. This Act's preamble and section 10 address this difference by grounding the legislation in empirical evidence about voter behaviour rather than in the formal ballot structure.

Second, this Act includes a more elaborated set of exempt changes than the New Zealand legislation, reflecting the greater diversity of circumstances in which a member might depart from their caucus in a parliamentary system without proportional representation.

Third, the cure period in section 25.2 has no direct counterpart in the New Zealand legislation, and is added to reduce the risk of Charter invalidity on the grounds of minimal impairment.

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Comparative Provisions Table

The table below maps the key provisions of this Act to their New Zealand counterparts and the relevant Canadian constitutional provisions.

Concept / Issue	Canada (Draft Act)	New Zealand (2018 Act)	Canadian Context
Trigger for vacancy	Change of party affiliation (broad test)	Resignation or expulsion from party	Parliamentary control under s.44
Scope	Includes conduct, voting patterns, cabinet roles	Primarily formal party status	Must satisfy Charter s.3
Independents	Allowed without triggering vacancy	Expulsion may trigger vacancy	Supports minimal impairment
Exemptions	Detailed and enumerated	Limited	Charter proportionality
Decision-maker	Speaker determines	Speaker relies on party leader notice	Parliamentary privilege
Process	Notice + submissions	No formal adjudication	Procedural fairness
Cure period	5 sitting days	None	Reduces overbreadth
Vacancy result	By-election required	List replacement	Fits FPTP system
Recontest	Member may run again	No automatic recontest	Preserves candidacy rights
Timing	30 days (extendable)	Not applicable	CEA consistency
Judicial review	Excluded	Excluded	Privilege doctrine
Rationale	Implicit party voting	Explicit party vote (MMP)	Evidence-based justification
Authority	Constitution Act, 1982 s.44	Parliamentary sovereignty	Avoids ss.41–42
Charter	Justified under s.1	No equivalent constraint	Oakes test applies

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